**BLUE RIDGE MILL SUPPLY**

Stone-milled flours and grains for Western North Carolina bakers

Fletcher, NC
(828) 555-0134
wade@blueridgemillsupply.com

# SUPPLY AGREEMENT

This Supply Agreement (this "Agreement") is made February 26, 2024 between Blue Ridge Mill Supply, Fletcher, North Carolina ("Supplier"), and Marsh & Mill Bakehouse LLC, 731 Haywood Rd, Asheville, North Carolina 28806 ("Buyer"). It replaces the supply terms in place between the parties since 2022.

**1. Products.** Supplier will supply flours and grains listed on its current price list as ordered by Buyer. Supplier will tell Buyer promptly if a listed product is unavailable or if a lot is substituted.

**2. Orders and delivery.** Buyer will place orders by email or phone. Supplier will deliver to Buyer's café at 731 Haywood Rd, Asheville, on Tuesdays and Fridays, or on another day the parties agree.

**(a)** Each delivery will come with a delivery receipt listing the products and quantities delivered. Buyer or Buyer's staff will sign the receipt at the door.

**(b)** Any short, torn or wet bag found at delivery will be noted on the receipt and credited on the next invoice.

**(c)** Product will be delivered in sealed, undamaged bags, each marked with a lot code and a milling or best-by date.

**3. Price and payment.** Prices are per Supplier's price list in effect on the order date. Supplier will give Buyer at least thirty (30) days written notice of any price increase. Supplier will post each invoice to its web portal, and Buyer authorizes Supplier to collect each invoice by ACH from Buyer's business checking account on the next business day after delivery. Supplier will post a monthly statement of invoices and payments to the same portal.

**4. Product quality.** Supplier warrants that all product delivered will be fresh, dry, free of insects, mold and foreign matter, and fit for use in a commercial bakery, through the date marked on the bag. If Buyer finds product that does not meet this warranty, Buyer will notify Supplier in writing within seven (7) days after finding it and will keep the affected bags for inspection. Supplier will replace the product or refund its price, at Buyer's option.

**5. Storage.** Buyer will store product in a clean, dry area off the floor.

**6. Term.** This Agreement runs for one (1) year from the date above and renews automatically for successive one (1) year terms unless terminated under Section 7.

**7. Termination.** Either party may terminate on thirty (30) days written notice, or immediately on written notice if the other party materially breaches this Agreement. Termination does not affect any payment, refund or warranty claim for product delivered before termination.

**8. Governing law.** This Agreement is governed by the laws of the State of North Carolina.

**9. Notices.** Notices under this Agreement may be given by email: to Supplier at wade@blueridgemillsupply.com, and to Buyer at elena@marshandmill.com.

**10. Entire agreement.** This Agreement and Supplier's price list in effect from time to time are the whole agreement between the parties about its subject. Any change must be in writing and signed by both parties.

Signed by the parties on the date shown below.

**SUPPLIER: Blue Ridge Mill Supply**

*Wade Pruitt*

By: _____

Name: Wade Pruitt
Title: Owner
Date: 02/26/2024

**BUYER: Marsh & Mill Bakehouse LLC**

*Elena Marsh*

By: _____

Name: Elena Marsh
Title: Owner
Date: 02/26/2024